

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA**

STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,

Petitioner,

vs.

STEVEN AUSTIN,
LPC, LICENSE NO. 3934

Respondent.

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MAY 09 2017

State Board of
Behavioral Health Licensure

Complaint No. 17-LPC-01

FINDINGS OF FACT, CONCLUSIONS OF LAW AND FINAL ORDER

On February 24, 2017, this matter came for hearing before the Oklahoma State Board of Behavioral Health Licensure. Board members Balmer, Brosi, Collins, Hiner, Moran, Sailor, Stevenson and Wilson were present. Board member Barnett recused. Chair Collins presided. Marie Schuble, Assistant Attorney General, served as prosecutor for the Board. Respondent appeared *pro se*. The Board heard testimony from witnesses and admitted exhibits into evidence.

The Complaint in the instant matter is hereby incorporated by reference.

By clear and convincing evidence, the Board hereby issues these Findings of Fact, Conclusions of Law and Final Order.

FINDINGS OF FACT

1. Respondent is a Licensed Professional Counselor ("LPC") in the State of Oklahoma, holding License Number 5044, and was licensed on or about November 20, 2007.

2. On January 3, 2017, the Board received an Exclusion letter from the Office of the Inspector General, U.S. Department of Health and Human Services, notifying the Board that Respondent was being excluded from participation in any capacity in Medicare, Medicaid and all Federal health care programs.

3. On January 5, 2017, a Request for Inquire (RFI) was received by the Board (17-LPC-01). The RFI stated that the Board received notice of exclusion from the Office of Inspector General on January 3, 2017, for Medicaid fraud.

4. On August 25, 2016, Respondent pleaded no contest to four (4) counts of Medicaid Fraud in violation of 56 O.S. § 1005(A)(1) in Case No. CF-2016-4883, Oklahoma County District Court. See Board Exhibit B. The plea contains the following factual admissions by Respondent:

a. Count 1: On or between March 23, 2013 and September 27, 2014, in Oklahoma County, OK, the defendant (Respondent in the instant administrative case) committed Medicaid fraud, a felony, in violation of 56 O.S. § 1005(A)(1) by willfully and knowingly submitting to Oklahoma Medicaid Program false claims in the amount of \$11, 149.82 for services not provided to M.D. and M.I.

b. Count 2: Between June 23, 2013, and November 15, 2014, in Oklahoma County, the defendant committed Medicaid fraud, a felony, in violation of 56 O.S. § 1005(A)(1) by willfully and knowingly submitting false claims in the amount of \$13,898.62 for services not provided to J.G.

c. Count 3: Between September 22, 2012, and December 14, 2013, in Oklahoma County, the defendant committed Medicaid fraud, a misdemeanor, in violation of 56 O.S. § 1005(A)(1) by submitting false claims in the amount of \$910.54 for services not provided to L.J.

d. Count 4: Between July 1, 2013, and October 22, 2014, in Oklahoma County, the defendant committed Medicaid fraud, a misdemeanor, in violation of 56 O.S. § 1005(A)(1) by willfully and knowingly submitting false claims in the amount of \$704.38 for services not provided to M.H.

CONCLUSIONS OF LAW

1. The Board has jurisdiction over Respondent pursuant to 59 O.S. §§1905 and 1912.
2. Pursuant to 59 O.S. § 1912(A)(3), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act (59 O.S. §§ 1901-1920) to a licensed professional counselor, if the person has engaged in fraud or deceit in connection with services rendered or in establishing needed qualifications pursuant to the Act.
2. Pursuant to 59 O.S. § 1912(A)(5), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act (59 O.S. §§ 1901-1920) to a licensed professional counselor, if the person has engaged in unprofessional conduct as defined by rules established by the Board. The rules of professional conduct are provided for in Subchapter 3 of Chapter 10 of Title 86 of the Oklahoma Administrative Code.
3. Pursuant to 59 O.S. § 1912(A)(6), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act (59 O.S. §§ 1901-1920) to a licensed professional counselor, if the person has engaged in negligence or wrongful actions in the performance of his or her duties.

4. According to OAC 86:10-3-6, a LPC who does not comply with Subchapter 3 – Rules of Professional Conduct – shall be subject to disciplinary action under Subchapter 29.

5. According to OAC 86:10-29-14(a), the Board may assess an administrative penalty against an individual if the order includes a finding that the individual: (1) violated any provision of the Act; or (2) violated any rule within this Chapter.

6. According to OAC 86:10-3-1, “[i]t shall be the responsibility of Licensed Professional Counselors (“LPCs”), in their commitment to the understanding of human behavior, to value objectivity and integrity, and in providing services, to strive to maintain the highest standards of their profession. LPCs shall accept responsibility for the consequences of their work and make every effort to ensure that their services are used appropriately. LPCs shall be alert to personal, social, organizational, financial, and political situations or pressures that might lead to the misuse of their influence. *LPCs shall not participate in, condone, or be associated with dishonesty, fraud, deceit or misrepresentation.* LPCs shall not exploit their relationships with clients for personal advantage, profit, satisfaction, or interest.” *Id.* (emphasis added).

7. According to OAC 86:10-3-4(a), “[i]t shall be unprofessional conduct for an LPC to plead guilty to or no contest to or be convicted of a state or federal statute if the violation directly relates to the duties and responsibilities of the counselor or if the violation involves moral turpitude.

8. Any Findings of Fact which is a Conclusion of Law is hereby incorporated by reference and *vice versa*.

FINAL ORDER

1. Respondent has violated OAC 86:10-3-1 by engaging in fraud, dishonesty, deceit or

misrepresentation.

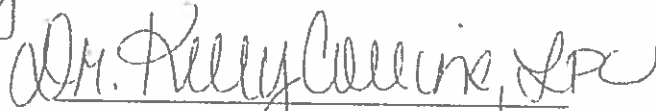
3. Respondent has violated OAC 86:10-3-4(a) by pleading no contest to willfully and knowingly committing Medicaid Fraud in violation of 56 O.S. § 1005(A)(1).

4. Respondent's License No. 3934 is hereby **REVOKED**.

5. This Order shall be effective on the date the written order issues following Attorney General review pursuant to Executive Order 2015-33.

All members present vote "Aye".

Issued this the 10 day of May, 2017.


DR. KELLY COLLINS, CHAIR